

Court No. - 39

Case :- WRIT - C No. - 65914 of 2015

Petitioner :- Val Kishan

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Shiv Raj Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Dilip Gupta,J.

Hon'ble Mukhtar Ahmad,J.

This petition seeks the quashing of the recovery citation dated 14 September 2015 issued by the Tehsildar as the petitioner did not deposit the amount raised by the respondent-Power Corporation in the Bank.

The sole submission advanced by the learned counsel for the petitioner is that the petitioner is ready to deposit the amount but some instalments may be fixed.

Sri Baleshwar Chaturvedi, learned counsel appearing for the Power Corporation has stated that such a facility is available to the petitioner under Clause 16.1.4 of the Electricity Supply Code, 2005.

The petitioner may, therefore, approach the Competent Officer under the aforesaid provision.

Leaving it open to the petitioner to do so, we dispose of this petition.

Order Date :- 8.12.2015

M.A.Ansari

(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)